

**MATHIAS EL TRIBE SUPREME COURT
OFFICE OF THE CHIEF JUSTICE & TRUSTEE**

Case No. MET-SC-2025-007

(Non-Interference & Land/People Protective Judgment)

IN RE: Final Non-Interference Judgment & Protective Order

Pursuant to Treaty Authority, Tribal Constitution, International Law, and Sovereign Jurisdiction



I. AUTHORITY AND JURISDICTION

This Court, as the highest judicial authority of the Mathias El Tribe, exercises full civil, protective, and land/people jurisdiction under:

- Mathias El Tribe Constitution and governing laws, including the Mathias El Tribal Code (“METC”), Title 4 Sovereignty, Jurisdiction, and Due Process Act (“SJDPA”).
- Treaty of Dancing Rabbit Creek (1830), binding under U.S. Const. art. VI, cl. 2.
- Indian Self-Determination and Education Assistance Act (ISDEAA), 25 U.S.C. § 5304(e).
- Native American Housing Assistance and Self-Determination Act (NAHASDA), definition of federally recognized tribes, 25 U.S.C. § 4103(13)(B).
- Violence Against Women Act (VAWA), 18 U.S.C. § 2265; 25 U.S.C. § 1304.
- Indian Child Welfare Act (ICWA), 25 U.S.C. § 1911(d).
- Full Faith and Credit for Child Custody & Protection Orders, 28 U.S.C. §§ 1738B–1738C.
- United States v. Wheeler, 435 U.S. 313 (1978).
- Montana v. United States, 450 U.S. 544 (1981).
- National Farmers Union Ins. Cos. v. Crow Tribe, 471 U.S. 845 (1985).

II. FINDINGS

1. Inherent Sovereignty – The Mathias El Tribe possesses inherent, original, and perpetual sovereignty over its people, lands, and jurisdiction, not granted by any outside government.
2. Anti-Alienation Principle – Alienation of Tribal lands, rights, or jurisdiction is void ab initio. No non-Tribal claim to our land is lawful.
3. Federal Trust Duty – The United States bears the highest legal and moral obligation to protect against alienation and preserve tribal exclusivity.
4. Reservation of Rights – “Indian Reservation” means Reservation of Rights, incorporating 18 U.S.C. § 1151.

III. ORDERS

§ 1. Non-Interference

No person, agency, or government shall interfere with the jurisdiction, lands, titles, resources, members, or lawful acts of the Mathias El Tribe. In accordance with the Sovereignty, Jurisdiction, and Due Process Act, METC Title 4, Ch. 4-200 (Sovereignty Protections), § 4-201 (Inherent Anti-Alienation Right), any attempt at alienation — defined as the forced transfer of land, rights, or jurisdiction to a foreign power — is void ab initio, constitutes a breach of trust, and shall be rejected as unlawful under tribal, treaty, and constitutional law.

The Tribe's right to resist alienation is inherent, perpetual, and self-executing. All protective orders issued under this section are enforceable under 25 U.S.C. §§ 1911(d), 2265, and 28 U.S.C. §§ 1738B–1738C, and apply retroactively to remedy past acts of alienation, distress, or jurisdictional overreach.

§ 2. Enforcement and Recognition

All judgments and orders of the Mathias El Tribe Supreme Court are entitled to full faith and credit under:

- 25 U.S.C. §§ 1911(d), 2265;
- 28 U.S.C. §§ 1738B–1738C.

The Court may enforce this Order through:

- Contempt sanctions;
- Exclusion from tribal lands;
- Referral to federal authorities including:
 - U.S. District Courts under applicable jurisdiction statutes (e.g., 18 U.S.C. §§ 1152–1153; 25 U.S.C. §§ 1304, 1911(d), 2265);
 - U.S. Court of Federal Claims under 28 U.S.C. § 1505;
 - Any other federal forum with jurisdiction to enforce treaty, trust, or statutory obligations.

§ 3. Sovereign Immunity

Nothing herein waives sovereign immunity or consents to suit. No waiver may be implied. No officer, employee, or agent may waive sovereign immunity without express Tribal Council authorization.

§ 4. Retroactive Jurisdiction

The Mathias El Tribe Supreme Court asserts full jurisdiction to issue protective orders that apply retroactively to the date of violation, harm, or coercion. These orders are enforceable under tribal law and federal full faith and credit provisions, and shall remedy all past acts of alienation, distress, or jurisdictional overreach. This retroactive application extends to February 22, 2024, pursuant to METC Title 4, § 4-107 (Effective Date of Orders).

IV. PROTECTIVE SCOPE AND FULL FAITH & CREDIT

This Judgment protects:

- The Chief Justice of the Mathias El Tribe,
- All governmental officers, employees, and instrumentalities,
- Women, children, elders, and other protected persons under Tribal law.

Pursuant to 18 U.S.C. § 2265(e) and 25 U.S.C. § 1911(d), this Order shall be given full faith and credit by all jurisdictions in the United States, without the need for registration or additional process. The violations and breaches giving rise to this Judgment are continuous and ongoing; therefore, the protective scope of this Order

applies retroactively to the date of the initial violation, harm, or coercion, and shall remain in force until expressly dissolved by this Court. This retroactive application is further grounded in the Sovereignty, Mathias El Tribal Code (“METC”), Title 4 — Sovereignty, Jurisdiction, and Due Process Act Title 4, § 4-201 (Inherent Anti-Alienation Right), which declares any unauthorized interference with Tribal lands, rights, or jurisdiction to be void ab initio and subject to immediate remedy.

V. NOTICE TO RESPONDENTS AND SERVICE PROTOCOL

Pursuant to the Sovereignty, Jurisdiction, and Due Process Act, METC Title 4, and in alignment with federal due process standards, the Mathias El Tribe Supreme Court hereby establishes the following notification and service protocol for all parties subject to this Judgment:

§ 1. Notice of Judgment

All persons, agencies, or governments subject to this Protective Judgment shall be notified through one or more of the following lawful methods:

- Official Tribal Publication: Posting on the Mathias El Tribe’s official website and/or gazette.
- Certified Mail or Courier: Delivery of the Judgment and Protective Order to the last known address of the respondent or agency.
- Electronic Service: Email or secure transmission to known agency contacts or legal representatives.
- Public Notice: Publication in a newspaper of general circulation within Kern County, California, and/or relevant federal district.

§ 2. Timing of Notification

Notification shall occur within seven (7) calendar days of the issuance of this Judgment. The date of issuance shall be deemed the effective date for protective enforcement, regardless of respondent receipt, pursuant to METC Title 4, § 4-107 (Effective Date of Orders).

§ 3. Opportunity to Respond

Respondents shall have fourteen (14) calendar days from the date of service to submit a written response or request a hearing before the Mathias El Tribe Supreme Court. Failure to respond shall constitute waiver of objection and acceptance of the Court’s jurisdiction and findings.

§ 4. Continuing Notice

This Judgment shall remain publicly posted and enforceable until expressly dissolved by this Court. Any future respondent or agency engaging in interference, alienation, or coercion shall be deemed constructively notified by the ongoing publication and enforcement of this Order.

IT IS SO ORDERED

Chief Mathias El
Chief Justice & Trustee.
Mathias El Tribe Supreme Court

Chief Justice

Date: August 12, 2025

Attested by: Clerk of the Court